



NARI SHAKTI ACT



"IF IT IS ABOUT WOMEN'S PARTICIPATION, LET'S CHANNEL OUR ENERGIES TOWARDS POLITICAL PARTIES. BY LEGISLATION, WE COULD MANDATE THEM TO FIELD A CERTAIN NUMBER OF WOMEN, PERHAPS THE 33 PER CENT"

RITWIKA SHARMA, *Asst Prof., Jindal Global Law School*

Court judge chosen by the government, as in the past. The other two permanent members would be the Chief Election Commissioner, or an Election Commissioner nominated by him, and the State Election Commissioner concerned. Ten associate members were envisaged for every state—five MPs chosen by the Lok Sabha Speaker and five MLAs chosen by his counterpart in the assembly. None would have the right to vote or sign.

Since the decisions of a Delimitation Commission cannot be questioned in court, experts point out the opacity of the process. "The real deficit at the heart of all this is not the absence of technical solutions but the absence of trust in the process. That trust can be rebuilt only if the composition of the Delimitation Commission is settled through a broad-based political agreement before the commission is constituted, not afterwards," says former cabinet secretary K.M. Chandrasekhar. As a trust-building measure, experts suggest providing statutory guidance for the Speaker's nomination of associate members and creating formal institutional spaces for expert and civil-society collaboration.

Q. WAS THE DEMAND FOR A CENSUS A NECESSITY OR A DELAYING TACTIC?

To accelerate women's reservation in the Lok Sabha by 2029, the Union government had introduced a triad of legislations: the Delimitation Bill, the 131st Amendment and the Union Territories Laws (Amendment) Bill, which together completed the formal revision of legal mechanisms needed to expand the House to 850 seats. These amendments would have rewritten Articles 82 and 170 to let Parliament choose which Census to use for delimitation—in effect, the 2011 figures rather than the 2026 enumeration. In doing so, it would have cut the constitutional umbilical cord tying women's reservation to a future Census, allowing the quota to take effect as early as the 2029 general election.

The Opposition, though, saw in the attempt a nefarious design to thwart their demand for adequate representation for OBCs in Parliament. The current Lok Sabha reserves 84 seats for SCs and 47 for STs under Article 330—about 24 per cent of the House. There is no reservation for OBCs. The 138 OBC MPs in the 18th Lok Sabha account for roughly 25 per cent, while the 141 upper-caste MPs constitute roughly 26 per cent, the first time in India's history that OBC representation in the Lok Sabha matches that of the upper castes.

Once the 2027 enumeration produces authentic OBC numbers for the first time in nearly a century, the parties that extracted the caste census from a reluctant ruling dispensation will not let the matter rest at job quotas. They will demand proportionate reservation in legislatures too, the way SCs and STs already have. "It will turn the debate from gender to social justice arithmetic," says Ashutosh Kumar of Panjab University, who has worked extensively